Attachment 1

CITY OF MOUNTAIN VIEW
RESOLUTION NO.
SERIES 20__

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF MOUNTAIN VIEW: (1) CALLING A GENERAL MUNICIPAL ELECTION AND ORDERING CONSOLIDATION WITH THE STATEWIDE GENERAL ELECTION FOR THE PURPOSE OF SUBMITTING TO THE VOTERS A BALLOT MEASURE TO AMEND MOUNTAIN VIEW CITY CODE SECTION 33.2 TO AUTHORIZE CITY COUNCIL TO INCREASE THE CITY'S TRANSIENT OCCUPANCY TAX; (2) AUTHORIZING MEMBERS OF THE COUNCIL TO AUTHOR AN ARGUMENT FOR THE BALLOT MEASURE; (3) DIRECTING THE CITY ATTORNEY TO PREPARE AN IMPARTIAL ANALYSIS; AND (4) AUTHORIZING THE CITY CLERK TO CONTRACT WITH THE COUNTY OF SANTA CLARA FOR SERVICES TO BE PERFORMED IN CONNECTION WITH THE GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY, NOVEMBER 3, 2026

WHEREAS, the City of Mountain View needs guaranteed sources of local funding for our vital city services, and wishes to ensure tax dollars stay local for the benefit of Mountain View residents and are not taken by Sacramento; and

WHEREAS, the City of Mountain View is committed to funding the services residents have expressed are top priorities, including fixing potholes, repairing streets and sidewalks, maintaining police and fire services to improve 911 emergency response, improving pedestrian and bicycle safety, maintaining our parks and adding new parks and open space to increase accessibility for all residents, and investing in affordable housing; and

WHEREAS, the transient occupancy tax rate currently imposed by the City of Mountain View is one of the lowest in the area and has not been updated since 1991; now, therefore,

WHEREAS, the City Council of the City of Mountain View desires to call a General Municipal Election to be held on Tuesday, November 3, 2026, for the purpose of submitting to the voters a ballot measure to amend Mountain View City Code section 33.2 to authorize City Council to increase the City's transient occupancy tax from 10% up to 15%; and

WHEREAS, the City Council of the City of Mountain View adopted a resolution on June 9, 2026, calling a General Municipal Election to be held on Tuesday, November 3, 2026, for the purpose of electing three (3) members of the City Council, and that resolution includes the request to the Board of Supervisors of the County of Santa Clara to order the General Municipal Election to be consolidated completely with the General Statewide election, pursuant to and in the manner described in California Elections Code sections 10403 and 10418; and

WHEREAS, the City Clerk of the City of Mountain View has recommended that the City contract with the County of Santa Clara to have the Registrar of Voters perform certain services in connection with the General Municipal Election on Tuesday, November 3, 2026; and

WHEREAS, the City Council of the City of Mountain View desires that the City contract with the County to have the Registrar of Voters perform certain services for said General Municipal Election as authorized by California Elections Code section 10002; now, therefore, be it

RESOLVED by the City Council of the City of Mountain View as follows:

Section 1. Call of Election. Pursuant to Mountain View City Charter section 1300, a General Municipal Election is hereby called and ordered to be held in the City on Tuesday, November 3, 2026, at which election there shall be a ballot measure that, if passed, will amend Mountain View City Code section 33.2 to authorize City Council to increase the City's transient occupancy tax from 10% up to 15%.

Section 2. Proposed Measure. The ballot measure shall read as follows:

Shall the measure to provide locally controlled funding for repairing potholes, streets and sidewalks, improving police, fire, and 911 emergency response services, supporting affordable housing, and adding new parks, and other general government services by authorizing City Council to increase the City of Mountain View's existing Transient Occupancy Tax paid by hotel and short-term rental guests from 10% up to 15%, generating up to $5,200,000 annually until ended by voters, with independent audits, be adopted?	YES	
	NO	

Section 3. Submission of Ordinance Amendment. The City Council of the City of Mountain submits to the voters at the November 3, 2026, election proposed amendments to Mountain View City Code section 33.2 as shown in **Exhibit A** attached hereto and incorporated herein. Additions are shown by underline font and deletions are shown by ~~strikethrough~~ font.

Section 4. Vote Centers Open. Vote centers for said election shall be open at 7:00 a.m. on the day of said election and shall remain open continuously from said time until 8:00 p.m. of the same day, when said vote centers shall be closed, except as provided in California Elections Code §§ 4005 and 14401.

Section 5. Publication. The City Clerk of the City of Mountain View is hereby ordered and directed to cause the notice of said election to be published in accordance with the provisions of the California Elections Code. The notice of the General Municipal Election provided for herein shall be published in a newspaper of general circulation within the City of Mountain View.

Section 6. Consolidation with Statewide Election. Pursuant to the requirements of California Elections Code section 10403, the Board of Supervisors of the County of Santa Clara is hereby requested to order the General Municipal Election to be held on Tuesday, November 3, 2026, and to completely consolidate the election with any other Statewide elections, which may be called for the same date. The consolidated election will be held and conducted in the manner prescribed by California Elections Code section 10418. The Board of Supervisors of the County of Santa Clara is further requested to order the County Registrar of Voters to: (1) prepare the City's election materials and take all other necessary actions for the holding of the consolidated election; and (2) provide Vote by Mail ballot to voters for said election for use of the qualified electors of the City of Mountain View who are entitled thereto, in the manner provided by law.

Section 7. Canvassing. The Board of Supervisors of the County of Santa Clara is hereby further authorized and requested to canvass or cause to be canvassed, as provided by law, returns of said General Municipal Election and to certify such canvass of the votes cast for the City Council of the City of Mountain View.

Section 8. Agreement with the County. The City Clerk is hereby authorized to enter into an agreement with the County of Santa Clara for the performance of certain election services for the City by the County Registrar of Voters pertaining to the conduct of said General Municipal Election to be held on Tuesday, November 3, 2026, and for the reimbursement of the County in full for the services performed pursuant to California Elections Code section 10002 and 10520.

Section 9. Services to be Performed. The County Registrar of Voters shall perform the following services for the City:

1. Consolidating precincts and arranging for vote centers and election officers.

2. Prepare and print election materials including official and sample ballots, envelopes and voter information guides.

3. Addressing and mailing sample ballots.

4. Handling applications for and mailing vote-by-mail ballots.

5. Bagging and labeling of precinct supplies.

6. Supervising computerized return of ballots cast.

7. Providing general assistance for the conduct of said election; and

8. Canvassing the election returns and certifying the results to the City Clerk.

Section 10. Authorization. The City Council authorizes the City Clerk to administer said election and all reasonable and actual election expenses shall be paid by the City upon presentation of a properly submitted invoice.

Section 11. Passage Requirement. Pursuant to California Government Code section 53723, this measure authorizing a general tax increase requires a majority vote of the electorate to pass.

Section 12. Text of Proposed Measure. The full text of this ballot measure shall not be printed in the County Voter Information Guide. The sample ballot shall include the title of the measure. The full text of the measure is available by calling the City Clerk's Office at 650-903-6304 and requesting a copy be mailed at no cost, is available on the City of Mountain View's website, and is available for review at the City Clerk's Office, located at 500 Castro Street, Third Floor, Mountain View.

Section 13. Arguments. The City Council authorizes the following member(s) of its body to file a written argument in favor of the proposed measure in accordance with Article 4, Chapter 3 of the California Elections Code:

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Section 14. Impartial Analysis. The City Council hereby directs the City Attorney to prepare an impartial analysis of the measure pursuant to California Elections Code section 9280.

Section 15. Certification. The City Clerk shall certify to the passage and adoption of this resolution and enter it into the book of original resolutions.

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Exhibit: A Proposed Ordinance Amendments

Exhibit A

ORDINANCE NO.

AN ORDINANCE OF THE PEOPLE OF THE CITY OF MOUNTAIN VIEW
AMENDING MOUNTAIN VIEW CITY CODE SECTION 33.2
TO AUTHORIZE CITY COUNCIL TO INCREASE THE TRANSIENT OCCUPANCY TAX

WHEREAS, the City of Mountain View needs a guaranteed source of local funding for our vital city services, and wishes to ensure tax dollars stay local for the benefit of Mountain View residents and are not taken by Sacramento; and

WHEREAS, the City of Mountain View is committed to funding the services residents have expressed are top priorities, including fixing potholes, repairing streets and sidewalks, maintaining police and fire services to improve 911 emergency response, improving pedestrian and bicycle safety, maintaining our parks and adding new parks and open space to increase accessibility for all residents, and investing in affordable housing; and

WHEREAS, the transient occupancy tax rate currently imposed by the City of Mountain View is one of the lowest in the area and has not been updated since 1991; now, therefore,

THE PEOPLE OF THE CITY OF MOUNTAIN VIEW DO HEREBY ORDAIN AS FOLLOWS:

SECTION 1. Chapter 33, Section 33.2, of the Mountain View City Code is amended to add, delete, or modify its provisions as set forth below. Section titles are shown in **bold** font, additions are shown in underline font and deletions are shown by ~~strikethrough~~ font. Provisions that are not shown in underline or strikethrough font are not changed.

SEC. 33.2. Tax Imposed.

a. Imposition of Tax.
For the privilege of occupancy in any hotel, each transient shall pay a transient occupancy tax on the rent charged by the operator.

b. Tax Rate.
The tax imposed by this chapter shall be ten percent (10%) of the rent charged by the operator.

c. Adjustment of Tax Rate by City Council.
Pursuant to authority granted by the voters, the City Council may, by ordinance amending this section, increase or decrease the tax rate established in subsection (b), provided that the tax rate shall not exceed fifteen percent (15%) of the rent charged by the operator.

d. Payment and Collection of Tax

~~For the privilege of occupancy in any hotel, each transient is subject to and shall pay a tax in the amount of ten (10) percent of the rent charged by the operator. Said~~ The tax imposed by this section ~~constitutes~~ is a debt owed by the transient to the city ~~which is extinguished~~ and is satisfied only by payment to the operator or directly to the city. The transient shall pay the tax to the operator ~~of the hotel~~ at the time the rent is paid. If the rent is paid in installments, a proportionate share of the tax shall be paid with each installment. ~~The~~ Any unpaid tax ~~shall be~~ becomes due ~~upon~~ when the transient ceases ~~transient's ceasing~~ to occupy space in the hotel. If, for any reason, the tax ~~due~~ is not paid to the operator ~~of the hotel~~, the tax administrator may require the transient ~~that such~~ to pay the tax ~~shall be paid~~ directly to the tax administrator.

SECTION 2. CEQA. Pursuant to California Code of Regulations section 15060(c)(2), these code amendments are not subject to the California Environmental Quality Act ("CEQA") because they will not result in a direct or a reasonably foreseeable indirect physical change in the environment.

SECTION 3. Severability. If any section, subsection, sentence, clause, or phrase of this ordinance is for any reason held to be unconstitutional, such decision shall not affect the validity of the other remaining portions of this ordinance. The City Council hereby declares that it would have passed this ordinance and each section, subsection, sentence, clause, or phrase thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses, or phrases be declared unconstitutional.

SECTION 4. Effective Date. Pursuant to California Elections Code section 9217, this ordinance shall be considered as adopted upon the date that the vote is declared by the legislative body, and shall go into effect 10 days after that date.

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